

Mukesh Chandra Yadav v. State of U.P.

Allahabad High Court · Division Bench · 4 August 2025 · 2025:AHC:131296-DB · Writ-C No. 7225 of 2021 · **Writ consigned to record; no cause of action survives.**

HEADNOTE

A writ challenging a theft-of-electricity demand and recovery citation for want of hearing under section 126 of the Electricity Act, 2003 read with clause 8.1 of the U.P. Electricity Supply Code, 2005 was consigned to record after none appeared for the petitioner in an oldest-pending listing and the Court found that no cause of action survived, with liberty to seek recall.

FACTUAL SUMMARY

Mukesh Chandra Yadav challenged a demand notice and recovery citation arising from a theft-of-electricity assessment, alleging that no hearing under section 126 of the Electricity Act, 2003 read with clause 8.1 of the U.P. Electricity Supply Code, 2005 had been given before final assessment. The respondents said the provisional assessment had been sent by registered post and that no reply was received. After 2021 adjournments the writ came up in 2025 as an oldest pending case; none appeared for the petitioner even on the revised call.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

oldest-pending-writ-consigned-to-record

HOLDING

Where a writ challenging a section 126 demand and recovery citation appeared among the oldest pending cases and none appeared for the petitioner even on the revised call, the Court held that no cause of action survived, consigned the matter to record and disposed of the writ, with liberty to apply for recall, variation or modification if the petitioner considered that the cause still survived. ¶ 4-6

PRINCIPLE TAGS

procedural-listing-no-construction

The Division Bench, listing an oldest pending writ, found none appearing for the petitioner even on the revised call and consigned the matter to record without construing section 126 or clause 8.1. ¶ 1-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER FINAL ASSESSMENT OF THEFT OF ELECTRICITY WAS MADE WITHOUT THE HEARING REQUIRED UNDER SECTION 126 OF THE ELECTRICITY ACT, 2003 READ WITH CLAUSE 8.1 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

The 2021 listings recorded the petitioner's hearing challenge and the respondents' assertion that a provisional assessment had been posted, but the 2025 disposal did not decide that issue. ¶ 4